SENATE BILL 2609
By Southerland

HOUSE BILL 2118

By Crawford

AN ACT to amend Tennessee Code Annotated, Title 11; Title 67; Title 69 and Title 70, relative to funding to the wildlife resources agency.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-6-103, is amended by adding the following as a new, appropriately designated subsection:

( )

(1) As used in this subsection ( ):

(A) "Recreational vessel":

(i) Means a vessel manufactured or used primarily for noncommercial use; and

(ii) Includes vessels propelled by sail or machinery and nonmotorized vessels as defined in § 69-9-227;

(B) "Recreational vessel accessories":

(i) Means equipment, parts, and accessories used in association with, or to transport, recreational vessels; and

(ii) Includes trailers, trolling motors, life jackets, covers, waterproof dry bags, roof racks, transport carts, seat backs, paddles, and oars;

(C) "Vessel" has the same meaning as defined in § 69-9-204; and

(D) "Wildlife-related outdoor recreational goods":

(i) Means tangible personal property manufactured or used primarily for hunting, angling, trapping, shooting, or fishing; and

(ii) Includes ammunition; firearms; firearm accessories; decoys; stands; traps; game calls; archery bows; fishing rods, lures, and reels; and tackle boxes.

(2) Notwithstanding the allocations provided for in subsection (a), all state sales and use tax derived from the sale, use, consumption, or distribution of recreational vessels, recreational vessel accessories, and wildlife-related outdoor recreational goods on or after July 1, 2026, must be earmarked and allocated to the wildlife resources fund, to be used for payment of the wildlife resource agency's operational expenses.

(3) Notwithstanding this subsection ( ) to the contrary, no portion of the revenue derived from the increase in the rate of sales and use tax allocated to educational purposes, pursuant to chapter 529, § 9 of the Public Acts of 1992, and no portion of the revenue derived from the increase in the rate of sales and use tax from six percent (6%) to seven percent (7%), pursuant to chapter 856, § 4 of the Public Acts of 2002, must be apportioned and distributed pursuant to this subsection ( ). All such revenue must continue to be allocated as provided in chapter 529, § 9 of the Public Acts of 1992, and chapter 856, § 4 of the Public Acts of 2002, respectively.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.